

Law of Torts

LL.B. – Paper IV (including Motor Vehicle Accidents and Consumer Protection Laws)

Unit-wise Important Questions

5 Marks • 10 Marks (Case Law with Illustrations) • 15 Marks

Unit	5 Marks	10 Marks (case law)	15 Marks
Unit I	12	4	4
Unit II	12	5	5
Unit III	12	4	5
Unit IV	12	4	5
Unit V	14	4	5

How to use: Part A gives short-answer questions, Part B gives case-law questions with a model answer outline (principle, case table and an illustration), and Part C gives long-answer questions with the key points to cover. For citations in the examination, cross-check against the law report or your prescribed readings (Winfield & Jolowicz; Salmond and Heuston; Ramaswamy Iyer; P.S.A. Pillai; Ratanlal & Dhirajlal; R.K. Bangia; D.N. Saraf).

Unit-I: Nature and Definition of Tort, General Principles of Liability

Part A — 5 Marks Questions

1. Define tort. State its essential elements.
2. Distinguish tort from crime.
3. Distinguish tort from breach of contract.
4. Explain the maxim *damnum sine injuria* with an illustration.
5. Explain the maxim *injuria sine damno* with an illustration.
6. Trace briefly the development of the law of torts in England.
7. Trace briefly the development of the law of torts in India.
8. Explain the role of malice in determining tortious liability.
9. Distinguish fault liability from liability without fault (no-fault or strict liability).
10. Explain statutory liability in the law of torts, with an example.
11. Who can sue and be sued in tort? Explain briefly with reference to the capacity of parties.
12. Explain the maxim *ubi jus ibi remedium*.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the maxims *damnum sine injuria* and *injuria sine damno* with reference to Gloucester Grammar School Case and *Ashby v White*. Illustrate.

Principle: *Damnum sine injuria* means damage without infringement of a legal right; such damage, however substantial, gives no cause of action in tort. *Injuria sine damno* means infringement of a legal right without actual damage or loss; here the law presumes damage and an action lies, since every injury imports damage (as expressed in the maxim *ubi jus ibi remedium*). The distinction shows that tortious liability rests on the violation of a legal right and not merely on the fact of loss.

Gloucester Grammar School Case	
Citation	(1410) Y.B. Hil. 11 Hen. IV, f. 47, pl. 21
Facts	A schoolmaster set up a rival school next to an existing grammar school, causing the former schoolmaster's pupils to move to the new school, and his income fell substantially.
Issue	Is a person liable in tort for causing financial loss to another by lawful competition?
Held	The court held that the defendant was not liable, since competition, however damaging, is not an infringement of any legal right of the plaintiff; damage without injury to a legal right gives no cause of action.
Significance	The earliest and best-known illustration of <i>damnum sine injuria</i> , showing that mere loss caused by lawful competition is not actionable.

Ashby v White	
Citation	(1703) 2 Ld Raym 938; 92 ER 126
Facts	Ashby, a qualified voter, was wrongfully prevented by White, a returning officer, from casting his vote, although the candidate for whom he wished to vote won the election regardless.
Issue	Can a person sue for the wrongful denial of a legal right (the right to vote) even though he suffered no actual damage, since his preferred candidate won anyway?
Held	The court held that Ashby had a cause of action. Where a legal right is infringed, the law will presume damage, since every right must have a remedy; the fact that his candidate won did not matter.
Significance	The classic illustration of <i>injuria sine damno</i> , establishing that violation of a legal right is actionable per se.

Illustration

A opens a new tea stall opposite B's tea stall, and by offering lower prices attracts away B's customers, causing B heavy loss. B has no remedy, as no legal right of his has been violated (*damnum sine injuria*). If, however, C, who is entitled to vote in a society election, is wrongly prevented from casting his vote by the returning officer, C can sue for the violation of his right, even if the candidate he wished to vote for was elected anyway (*injuria sine damno*), as in *Bhim Singh v State of Jammu & Kashmir*, where an MLA wrongfully detained and prevented from attending the Assembly session was awarded exemplary damages though the Assembly business went on without him.

Q2. Distinguish tort from breach of contract, with reference to *Donoghue v Stevenson*. Illustrate.

Principle: A tort is a civil wrong independent of contract, for which the remedy is an action for unliquidated damages; the duty violated in tort is a duty fixed by law towards persons generally, whereas a duty in contract is fixed by the parties themselves and owed only to the other contracting party (privity of contract). Because of this, a person may be liable in tort to someone with whom he has no contract at all, provided the general conditions of tortious liability, such as a duty of care, are satisfied.

Donoghue v Stevenson	
Citation	[1932] AC 562 (House of Lords)
Facts	Mrs. Donoghue's friend bought her a bottle of ginger beer manufactured by Stevenson. The bottle was opaque, and after Mrs. Donoghue had drunk part of it, a decomposed snail was found inside, and she fell ill. She had no contract with the manufacturer, since her friend had purchased the bottle.
Issue	Can a consumer who has no contract with the manufacturer sue the manufacturer in tort for injury caused by a defective product?

Held	The House of Lords held that a manufacturer owes a duty of care to the ultimate consumer of a product, independent of any contract, where the product is intended to reach the consumer in the form in which it left the manufacturer, without a reasonable possibility of intermediate examination. Lord Atkin formulated the "neighbour principle" as the foundation of the modern law of negligence.
Significance	The foundation of the modern law of negligence and the classic authority for the proposition that tortious duties exist independently of contract.

Illustration

A buys a pressure cooker from a shop as a gift for his mother B. If the cooker explodes due to a manufacturing defect and injures B, B, though she has no contract with the manufacturer or the shop, can sue the manufacturer in tort for negligence, following the principle in *Donoghue v Stevenson*, because the manufacturer owed her a duty of care as the ultimate consumer of the product.

Q3. Explain the role of malice in tortious liability with reference to *Bradford Corporation v Pickles* and *Christie v Davey*. Illustrate.

Principle: Malice may mean malice in law (an act done wrongfully and without just cause or excuse, even without spite) or malice in fact (an evil motive or spite). As a general rule, if an act is lawful in itself, the motive with which it is done is irrelevant, and a good motive will not justify an act that is otherwise unlawful. However, in certain torts such as private nuisance, malicious prosecution and defamation, malice can turn an otherwise lawful act into an actionable wrong.

Bradford Corporation v Pickles	
Citation	[1895] AC 587 (House of Lords)
Facts	Pickles, to compel the Corporation to buy his land at his price, sank a shaft on his own land which intercepted and discoloured the underground water that would otherwise have flowed to the Corporation's adjoining reservoir. He admitted that his motive was to injure the Corporation and to extract a higher price.
Issue	Is a landowner liable for an act that is lawful in itself (dealing with water under his own land) merely because it is done with a malicious motive?
Held	The House of Lords held that Pickles was not liable. Since he had a legal right to intercept percolating water under his own land, his motive, however malicious, could not make a lawful act unlawful.
Significance	The leading authority for the proposition that malice does not make a lawful act unlawful.

Christie v Davey	
Citation	[1893] 1 Ch 316
Facts	The plaintiff, a music teacher, gave lessons at home. Annoyed by the noise, the defendant, out of spite, began banging on the party wall, beating trays and blowing whistles to interfere with the lessons.
Issue	Is a person liable for an act that would otherwise be lawful (making noise in one's own house) when it is done deliberately and maliciously to annoy a neighbour?
Held	The court granted an injunction, holding that the defendant's conduct was done with malicious intent to annoy the plaintiff and amounted to an actionable nuisance, unlike ordinary and reasonable use of one's own property.
Significance	Shows that in nuisance, malice can be a relevant factor in deciding whether interference with another's enjoyment of property is actionable.

Illustration

A, out of enmity, builds a wall on his own land solely to block the light to B's window, though there is no independent legal right of B to that light. Since A's act (building on his own land) is lawful, A's spiteful motive alone does not make him liable, following *Bradford Corporation v Pickles*. If, however, A deliberately runs machinery at odd hours purely to disturb B's peace, going beyond any legitimate use of his property, A may be liable in nuisance because of the malicious character of the interference, as in *Christie v Davey*.

Q4. Distinguish liability based on fault from liability without fault, with reference to *Minu B. Mehta v Balkrishna Ramchandra Nayan* and *Read v J. Lyons & Co. Ltd.* Illustrate.

Principle: Ordinarily, tortious liability is based on fault — that is, on the defendant's wrongful intention or negligence. However, in certain situations the law imposes liability without proof of fault, either under judge-made rules such as strict and absolute liability, or under statute, in the interest of victims who would otherwise find it very difficult to prove negligence, such as victims of motor accidents.

Minu B. Mehta v Balkrishna Ramchandra Nayan	
Citation	(1977) 2 SCC 441; AIR 1977 SC 1248
Facts	The claimants sought compensation for injuries in a motor accident and argued that the owner and driver of a vehicle should be liable to pay compensation even without proof of negligence, given the special hazards of motor traffic.
Issue	Can compensation for a motor accident be claimed without proving negligence on the part of the driver or owner?
Held	The Supreme Court held that, in the absence of a statutory provision, liability in a motor accident claim could not be fastened without proof of negligence; the common law required fault to be shown. The judgment highlighted the hardship this caused to victims and the need for legislative intervention.

Significance	Directly led to Parliament introducing no-fault liability provisions (Sections 92A to 92E, and later Sections 140-144) in the Motor Vehicles Act, so that a claimant need not prove negligence to obtain basic compensation.
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Read v J. Lyons & Co. Ltd.	
Citation	[1947] AC 156 (House of Lords)
Facts	The plaintiff, a government inspector, was injured by an explosion of a shell being manufactured in the defendant's munitions factory, without there being any escape of the dangerous thing outside the defendant's premises.
Issue	Can the defendant be held strictly liable for injury caused by a dangerous activity carried on within its own premises, without any escape of the dangerous thing?
Held	The House of Lords held that the rule of strict liability (as in <i>Rylands v Fletcher</i>) requires an escape of the dangerous thing from the defendant's land to a place outside their control; since there was no escape, the defendant was not strictly liable, and liability, if any, had to be founded on negligence, which was not proved.
Significance	Shows the limits of liability without fault at common law, and the corresponding importance of statutory no-fault liability regimes such as the Motor Vehicles Act for accident victims.

Illustration

A pedestrian is knocked down by a speeding car and is unable to establish exactly how the accident happened or that the driver was negligent. Under the ordinary fault principle recognised in *Minu B. Mehta*, the claim would fail without proof of negligence; but under the no-fault liability provisions of the Motor Vehicles Act, 1988 (enacted after this case), the claimant can recover a fixed compensation without proving fault. By contrast, if a worker in a factory is injured by machinery that never leaves the factory premises, *Read v J. Lyons* shows that the rule of strict liability for escape does not apply, and the worker must generally prove negligence, subject to any separate statutory workmen's compensation scheme.

Part C — 15 Marks Questions

1. Define tort and explain its essential elements. How has the law of torts developed in England and in India?

Key points: *Salmond's and Winfield's definitions; wrongful act, legal damage, legal remedy; tort as a civil wrong not exclusively belonging to contract, trust or other category; historical writ system in England (trespass and case); India: no separate Tort Act, courts apply justice, equity and good conscience, guided by English common law, subject to Indian conditions and statutes (Motor Vehicles Act, Consumer Protection Act); M.C. Mehta v Union of India on evolving Indian tort doctrine independent of English law.*

2. Distinguish tort from crime and from breach of contract. Can the same act give rise to more than one kind of liability?

Key points: *Nature of remedy (damages vs punishment); parties (private individual vs State); intention; the standard of proof; examples of an act being both a crime and a tort (assault, defamation) or both a tort and breach of contract (Donoghue v Stevenson vs Winterbottom v Wright); privity of contract not required in tort; illustration of overlapping liability.*

3. Explain the maxims *damnum sine injuria* and *injuria sine damno* with the help of decided cases.

Key points: *Meaning of *damnum* (damage) and *injuria* (legal injury); Gloucester Grammar School Case; Mogul Steamship Co v McGregor, Gow & Co; Ashby v White; Bhim Singh v State of J&K; the idea that legal injury, not factual loss, is the basis of tortious liability.*

4. Discuss the general principles of liability in torts: fault, wrongful intent, malice and negligence.

Key points: *Fault theory as the basis of most tort liability; role of intention and malice — malice in law vs malice in fact; Bradford Corporation v Pickles; negligence as a state of mind and as an independent tort; liability without fault — strict and absolute liability, statutory liability (Motor Vehicles Act, Public Liability Insurance Act); Rylands v Fletcher and M.C. Mehta v Union of India in brief (detailed in Unit II).*

Unit-II: General Defences, Vicarious Liability, State Liability, Strict and Absolute Liability, Occupiers' Liability and Extinction of Liability

Part A — 5 Marks Questions

1. Explain volenti non fit injuria as a general defence in tort.
2. Explain contributory negligence as a defence.
3. Write a short note on inevitable accident as a defence.
4. Explain act of God (vis major) as a defence in tort.
5. Explain private defence and statutory authority as defences in tort.
6. Explain the meaning and basis of vicarious liability.
7. What is meant by "course of employment" in vicarious liability?
8. Explain the doctrine of sovereign immunity and its relevance in India.
9. Distinguish joint tortfeasors from independent (several) concurrent tortfeasors.
10. Explain the liability of an occupier towards invitees, licensees and trespassers.
11. Explain waiver, release and accord and satisfaction as modes of extinction of tortious liability.
12. Explain the effect of death on the right of action in tort (brief note; detailed maxim in Unit IV).

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain volenti non fit injuria as a defence in tort with reference to Hall v Brooklands Auto-Racing Club and Padmavati v Dugganaika. Illustrate.

Principle: Volenti non fit injuria means that a person who has voluntarily consented to run a risk, with knowledge of its nature, cannot afterwards complain of the injury resulting from it. The defence requires both knowledge of the risk (scienti) and voluntary acceptance of it (volenti); mere knowledge without consent is not enough. The defence does not apply where consent is obtained by fraud, or where the plaintiff acts under a legal or moral duty (as in rescue cases), or where the act is unlawful.

Hall v Brooklands Auto-Racing Club	
Citation	[1933] 1 KB 205 (Court of Appeal)
Facts	The plaintiff was a spectator at a motor car race organised by the defendant club. During the race, two cars collided, and one of them was flung into the enclosure where the spectators stood, injuring the plaintiff.
Issue	Can a spectator at an inherently risky sporting event recover damages for an injury arising from the ordinary risks of that event?
Held	The Court of Appeal held that the plaintiff, by attending the race, had voluntarily accepted the risk of such accidents as are inherent in a motor race conducted with reasonable care, and could not recover; there was also no negligence shown on the part of the organisers.
Significance	A leading authority on volenti applied to spectators of hazardous sports.

Padmavati v Dugganaika	
Citation	AIR 1975 Mys 93 (Karnataka High Court)
Facts	The driver of a jeep gave a free lift to two strangers. Owing to a latent defect in the vehicle, of which the driver was unaware, the front wheel came off, the jeep overturned, and the passengers were killed.
Issue	Can the deceased passengers' representatives claim damages when the passengers had voluntarily accepted a free ride, and no negligence of the driver was shown?
Held	The court held that the defence of volenti non fit injuria applied, since the passengers had voluntarily got into the vehicle knowing that it was a gratuitous lift; further, there was no negligence on the part of the driver, as the defect was latent and undiscoverable by ordinary care.
Significance	An Indian illustration of volenti non fit injuria and of the requirement of negligence to found liability.

Illustration

A attends a cricket match and is injured by a ball hit into the stands during ordinary play; he cannot sue the organisers, since spectators are taken to accept the ordinary risks of the game (*Hall v Brooklands*). But if A is injured because the stadium's barrier collapses due to poor maintenance, volenti does not apply, since that risk was not one he consented to, and the organisers may be liable in negligence. Similarly, a person who voluntarily jumps into a river to rescue a drowning child cannot be met with the defence of volenti, since the law encourages rescue (*Haynes v Harwood*).

Q2. Explain the doctrine of vicarious liability of a master for the tort of his servant, with reference to *Limpus v London General Omnibus Co.* and *Lloyd v Grace, Smith & Co.* Illustrate.

Principle: Vicarious liability rests on the maxims qui facit per alium facit per se (he who acts through another is deemed to act himself) and respondeat superior (let the principal be liable). A master is liable for the torts of his servant committed in the course of employment, even if the servant acted contrary to express instructions or committed a deliberate wrong, provided the wrongful act is sufficiently connected with the authorised work. The master is not liable for acts wholly outside the scope of employment ("on a frolic of his own").

Limpus v London General Omnibus Co.	
Citation	(1862) 1 H & C 526; 158 ER 993
Facts	A bus driver, in express violation of his employer's instructions not to race with or obstruct other buses, drove his omnibus across the road to obstruct a rival bus, causing a collision that damaged the plaintiff's bus.
Issue	Is the employer liable for an act of the employee that was expressly prohibited by the employer?

Held	The court held the employer liable. Although the specific act was prohibited, the driver was doing an authorised class of act, namely driving the bus in the course of his employment, in an improper manner; a prohibition limiting the manner of doing an authorised act does not take the act outside the scope of employment.
Significance	Establishes that an employer can be vicariously liable even for an act expressly forbidden, if it is an improper mode of doing an authorised act.

Lloyd v Grace, Smith & Co.	
Citation	[1912] AC 716 (House of Lords)
Facts	A firm of solicitors' managing clerk, acting within the scope of his apparent authority, fraudulently induced a client to transfer property to him and then dishonestly disposed of it for his own benefit.
Issue	Is an employer liable for the fraudulent and dishonest act of an employee committed for the employee's own benefit, if it was done within the scope of his employment?
Held	The House of Lords held the firm liable, since the clerk was acting within the class of acts he was authorised to do (conducting conveyancing business for clients), even though he acted fraudulently and for his own benefit rather than that of his employer.
Significance	Extended vicarious liability to fraudulent and criminal acts of a servant done in the course of employment, not merely negligent ones.

Illustration

A bus conductor, contrary to instructions not to allow passengers to board a moving bus, signals a passenger to jump on, and the passenger is injured. The employer is vicariously liable, since the conductor was performing an authorised class of work (dealing with passengers) in an unauthorised manner (*Limpus v London General Omnibus Co.*). If, however, a bus driver, after finishing his duty for the day, takes the bus to visit his own family and causes an accident on that private trip, the employer is not liable, since the driver was on a "frolic of his own", outside the course of employment.

Q3. Discuss the liability of the State for torts committed by its servants in India, with reference to *State of Rajasthan v Mst. Vidyawati* and *Kasturi Lal v State of U.P.* Illustrate.

Principle: The doctrine of sovereign immunity, inherited from English law through Article 300 of the Constitution, distinguished between sovereign functions of the State (such as defence, administration of justice, maintenance of law and order), for which the State was immune from liability for the torts of its servants, and non-sovereign or commercial functions, for which the State was liable like any other employer.

State of Rajasthan v Mst. Vidyawati	
Citation	AIR 1962 SC 933
Facts	A government jeep, being driven back from the workshop after repairs by a driver employed by the State, negligently knocked down and killed a pedestrian.
Issue	Is the State vicariously liable for the negligence of its employee while performing a non-sovereign function such as driving a jeep after repair?
Held	The Supreme Court held the State liable, since driving a vehicle back from the workshop was not a sovereign function; the State, like a private employer, was vicariously liable for the tort of its servant committed in the course of a non-sovereign activity.
Significance	A significant step toward reducing the scope of sovereign immunity in India.

Kasturi Lal Ralia Ram Jain v State of Uttar Pradesh	
Citation	AIR 1965 SC 1039
Facts	Gold seized from the plaintiff by police officers acting under statutory power was misappropriated by a police constable while in official custody, and could not be returned to the plaintiff.
Issue	Is the State liable for the loss of property caused by the negligence or misconduct of its police officers while exercising statutory powers connected with the maintenance of law and order?
Held	The Supreme Court held that the act of seizing and keeping the property in custody was referable to the exercise of sovereign powers relating to the maintenance of law and order, and so the State was immune from liability, though the Court expressed the hope that the law would be reformed.
Significance	The most criticised application of sovereign immunity; its scope has since been narrowed by later decisions such as <i>N. Nagendra Rao & Co. v State of A.P.</i> and by the availability of constitutional remedies for violation of fundamental rights (<i>Nilabati Behera v State of Orissa</i>).

Illustration

A government-owned truck, while transporting goods for a public sector undertaking, negligently knocks down a cyclist. Since transporting goods for a commercial undertaking is a non-sovereign function, the State (or the undertaking) would be liable, following the reasoning in *Vidyawati*. But where property is confiscated and lost by police officers exercising statutory powers connected with law and order, the traditional position in *Kasturi Lal*, though heavily criticised and narrowed, illustrates the older immunity for genuinely sovereign functions; today the victim may also claim compensation directly under Articles 21 and 32/226 for violation of fundamental rights.

Q4. Distinguish the rule of strict liability laid down in *Rylands v Fletcher* from the rule of absolute liability laid down in *M.C. Mehta v Union of India*. Illustrate.

Principle: Under the rule in *Rylands v Fletcher*, a person who, for his own purposes, brings and keeps on his land anything likely to do mischief if it escapes, must keep it at his peril, and is liable for all damage that is the natural consequence of its escape, subject to exceptions such as act of God, act of a stranger, the plaintiff's own default, statutory authority and the plaintiff's consent. Finding this rule, with its exceptions, inadequate for hazardous industries in a developing country, the Indian Supreme Court evolved the stricter rule of absolute liability, which admits no exceptions.

Rylands v Fletcher	
Citation	(1868) LR 3 HL 330
Facts	The defendant employed independent contractors to construct a reservoir on his land. Water from the reservoir escaped through old, disused mine shafts and flooded the plaintiff's adjoining coal mine.
Issue	Is a person who brings a dangerous thing onto his land for a non-natural use liable for damage caused by its escape, even without negligence on his part?
Held	The House of Lords held the defendant liable, laying down the rule that a person who brings and keeps a dangerous thing on his land for a non-natural use does so at his peril, and is liable if it escapes and causes damage, irrespective of negligence, subject to recognised exceptions.
Significance	The foundation of the rule of strict liability in the common law.

M.C. Mehta v Union of India	
Citation	(1987) 1 SCC 395 (Oleum Gas Leak case)
Facts	Oleum gas leaked from a unit of Shriram Foods and Fertilizer Industries in Delhi, causing injury to a number of people and the death of an advocate.
Issue	Is the rule in <i>Rylands v Fletcher</i> , with its exceptions, an adequate standard of liability for enterprises engaged in hazardous or inherently dangerous activities in modern India?
Held	The Supreme Court held that the rule in <i>Rylands v Fletcher</i> was evolved in the 19th century and was not adequate for a modern industrial economy. It laid down the rule of absolute liability: an enterprise engaged in a hazardous or inherently dangerous activity owes an absolute and non-delegable duty to the community, and is liable for harm caused, without any of the exceptions available under <i>Rylands v Fletcher</i> , and the quantum of compensation must be correlated to the magnitude and capacity of the enterprise.
Significance	Made Indian law on hazardous industry stricter than English law; later reflected in the Public Liability Insurance Act, 1991 and the National Green Tribunal Act, 2010.

Illustration

A owns a chemical factory that stores toxic gas. A saboteur, a stranger to the factory, deliberately damages a valve and causes a leak that injures nearby residents. Under *Rylands v Fletcher*, the factory could plead the act of a stranger as a defence; but under the rule of absolute liability in *M.C. Mehta*, it cannot rely on that defence, and must compensate the victims, with the amount of compensation linked to the size and profitability of the enterprise.

Q5. Explain occupiers' liability towards persons who enter upon land, with reference to *Indermaurer v Dames* and *Addie v Dumbreck*. Illustrate.

Principle: At common law, an occupier's duty of care depends on the character in which the entrant comes onto the premises. An occupier owes the highest duty to an invitee (a person who enters for a purpose in which the occupier has a material interest, such as a business visitor), a somewhat lesser duty to a licensee (a person who enters with permission but no material interest to the occupier), and only a limited duty to a trespasser, generally not to willfully or recklessly injure him. Modern law and statute in many jurisdictions have replaced or modified these categories, but they remain important for understanding the development of the duty of care.

Indermaurer v Dames	
Citation	(1866) LR 1 CP 274
Facts	The plaintiff, a gas fitter's employee, went to the defendant's sugar refinery to fit a gas meter under a contract, and fell through an unfenced hole in the floor of the workshop.
Issue	What duty does an occupier owe to a person who enters the premises on business in which both parties have an interest (an invitee)?
Held	The court held that the occupier owed the plaintiff, as an invitee, a duty to use reasonable care to prevent damage from unusual danger of which the occupier knew or ought to have known, and was liable for failing to guard or warn of the unfenced hole.
Significance	The leading case establishing the duty owed by an occupier to an invitee.

Addie v Dumbreck	
Citation	[1929] AC 358 (House of Lords)
Facts	A child trespassed onto the defendant's colliery premises and was fatally injured by machinery that was left insufficiently guarded, though the defendants had tried to keep children out.
Issue	What duty, if any, does an occupier owe to a trespasser, including a child trespasser?
Held	The House of Lords held that the only duty owed to a trespasser is not to willfully or recklessly injure him; the occupier is not liable merely for failing to take reasonable care for a trespasser's safety.

Significance

The classical (and later much criticised and modified) statement of the limited duty owed to trespassers.

Illustration

A repairman visits a shop to service its air conditioner and is injured because of an unusual, hidden defect in the floor of which the shop owner was aware but did not disclose; the shop owner is liable to him as an invitee, following *Indermaurer v Dames*. If, however, a trespasser sneaks into a factory at night to steal goods and is injured by machinery that the occupier has taken no special steps against, the occupier is not liable so long as he did not deliberately or recklessly cause the injury, following the older rule in *Addie v Dumbreck* (though today many jurisdictions, including India through occupiers' liability principles and child-specific "allurement" doctrine, extend somewhat greater protection to child trespassers).

Part C — 15 Marks Questions

1. **Discuss the general defences available to a defendant in an action for tort, with the help of decided cases.**

Key points: *Volenti non fit injuria* (*Hall v Brooklands Auto-Racing Club*; *Padmavati v Dugganaika*) and its limits (rescue cases, *Haynes v Harwood*); contributory negligence and the last opportunity rule; inevitable accident (*Stanley v Powell*); act of God; necessity; private defence; statutory authority (*Vaughan v Taff Vale Railway Co.*); plaintiff the wrongdoer.

2. **Explain the doctrine of vicarious liability. When is a master liable for the tort of his servant, including a willful wrong?**

Key points: Basis — *qui facit per alium facit per se* and *respondeat superior*; master-servant vs independent contractor; test of control; course of employment; *Limpus v London General Omnibus Co.*; *Lloyd v Grace, Smith & Co.*; *State Bank of India v Shyama Devi* (master not liable for act outside employment); liability of the State for torts of its servants — link to State liability.

3. **Discuss the liability of the State for torts committed by its servants in India. How has the doctrine of sovereign immunity been diluted?**

Key points: *P & O Steam Navigation Co. v Secretary of State for India* (sovereign vs non-sovereign functions); *State of Rajasthan v Mst. Vidyawati*; *Kasturi Lal v State of U.P.* and its criticism; *N. Nagendra Rao & Co. v State of A.P.*; constitutional remedy under Article 32/226 for violation of fundamental rights (*Nilabati Behera v State of Orissa*); recommendations for legislative reform.

4. **Distinguish the rule of strict liability from the rule of absolute liability with reference to *Rylands v Fletcher* and *M.C. Mehta v Union of India*.**

Key points: *Rylands v Fletcher* — escape of a dangerous thing, non-natural use, exceptions (act of God, act of stranger, plaintiff's default, statutory authority, consent); *M.C. Mehta v Union of India* (*Oleum Gas Leak case*) — absolute liability of an enterprise engaged in hazardous activity, no exceptions, measure of compensation linked to the size and capacity of the enterprise; *Union Carbide Corporation v Union of India* (*Bhopal Gas case*) in brief; *Public Liability Insurance Act, 1991*.

5. Explain occupiers' liability and the various modes of extinction of tortious liability.

Key points: *Duty of an occupier towards invitees (Indermaurer v Dames), licensees, and trespassers (Addie v Dumbreck; Ryan v Youngman doctrine of allurement to children); waiver and election; release; accord and satisfaction; effect of death — actio personalis moritur cum persona and statutory exceptions (Legal Representatives' Suits Act, 1855; Motor Vehicles Act, 1988).*

Unit-III: Specific Torts Affecting Person and Property; Liability Arising out of Motor Vehicle Accidents

Part A — 5 Marks Questions

1. Define assault and battery and distinguish between them.
2. Explain the essentials of false imprisonment.
3. Explain the essentials of malicious prosecution.
4. Explain nervous shock as an actionable tort.
5. Explain trespass to land and the doctrine of trespass ab initio.
6. Distinguish trespass from nuisance.
7. Explain the essentials and remedies for private nuisance.
8. Explain public nuisance and when an individual can sue in respect of it.
9. Explain torts to movable property: trespass to goods, conversion and detinue.
10. Explain the no-fault liability provisions of the Motor Vehicles Act, 1988.
11. Explain the structured formula for compensation under the Motor Vehicles Act.
12. Write a short note on the solatium scheme for hit-and-run motor accidents.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain false imprisonment as a tort, with reference to Bird v Jones and Bhim Singh v State of Jammu & Kashmir. Illustrate.

Principle: False imprisonment consists in the total restraint of the personal liberty of a person, without lawful justification, however short the duration. The restraint must be complete, in the sense that there is no reasonable means of escape available to the plaintiff; a partial obstruction that still leaves a reasonable way out does not amount to false imprisonment, though it may be actionable as some other wrong such as nuisance. Knowledge of the confinement by the plaintiff is not always essential, but it affects the quantum of damages.

Bird v Jones	
Citation	(1845) 7 QB 742
Facts	Part of a public highway (Hammersmith Bridge) was fenced off for seating to view a boat race. The plaintiff insisted on using that part of the footway, and the defendants refused to let him pass through it, although he could have gone back and taken another route around the enclosure.
Issue	Does obstructing one route, while leaving another way open, amount to false imprisonment?
Held	The court held that there was no false imprisonment, since the restraint was only partial; the plaintiff was free to go another way, and total deprivation of liberty of movement is essential for the tort.
Significance	The leading authority establishing that the restraint in false imprisonment must be total, not partial.

Bhim Singh v State of Jammu & Kashmir	
Citation	AIR 1986 SC 494
Facts	Bhim Singh, a sitting member of the Legislative Assembly, was wrongfully arrested and detained by the police while on his way to attend an Assembly session, with the deliberate object of preventing him from attending and voting.
Issue	Is a person wrongfully arrested and detained, in violation of constitutional and legal safeguards, entitled to exemplary damages, even where the immediate legislative business is not otherwise affected?
Held	The Supreme Court held that the arrest and detention were wholly unjustified and mala fide, violating Article 21 and 22, and awarded exemplary damages of Rs. 50,000, emphasising that such abuse of police power calls for deterrent compensation.
Significance	A leading Indian case combining false imprisonment principles with constitutional remedies and exemplary damages for wrongful detention by the State.

Illustration

A locks the only door of a room in which B is present, with no other way out, even for a few minutes; this is false imprisonment, however short the duration. If, instead, A blocks one gate of a park but leaves another gate open through which B could exit, there is no false imprisonment, since the restraint is only partial, as in *Bird v Jones*. If police wrongfully detain a citizen overnight without any legal justification and with an improper motive, the citizen, like Bhim Singh, can claim substantial and even exemplary damages.

Q2. Explain the essentials of malicious prosecution, with reference to *Abrath v North Eastern Railway Co.* Illustrate.

Principle: Malicious prosecution consists in instituting unsuccessful criminal (or certain other) proceedings against another, maliciously and without reasonable and probable cause. The plaintiff must prove: (i) that he was prosecuted by the defendant; (ii) that the prosecution ended in his favour, or was otherwise terminated without a finding of guilt; (iii) that the prosecution was instituted without reasonable and probable cause; (iv) that it was actuated by malice; and (v) that he suffered damage to reputation, person or property as a result.

Abrath v North Eastern Railway Co.	
Citation	(1883) 11 QBD 440 (Court of Appeal); affirmed (1886) 11 App Cas 247 (HL)
Facts	The company's officers prosecuted Abrath, a surgeon, on a charge of conspiring to defraud the company by presenting a fraudulent claim for injuries allegedly sustained in a railway accident, but he was acquitted, and he then sued for malicious prosecution.
Issue	What must a plaintiff prove to succeed in an action for malicious prosecution, and on whom does the burden of proof lie?

Held	The court held that the burden lies entirely on the plaintiff to prove the absence of reasonable and probable cause, as well as malice on the part of the prosecutor; it is not for the defendant to justify the prosecution. On the facts, the plaintiff failed to discharge this burden, and the action failed.
Significance	A leading authority on the burden of proof and the essential ingredients of malicious prosecution.

Illustration

A, out of personal spite and without any genuine belief in the truth of the charge, lodges a false complaint of theft against B, and B is arrested, prosecuted and later acquitted, since there was no evidence at all against him. B can sue A for malicious prosecution, since the prosecution was actuated by malice and lacked reasonable and probable cause, and B suffered damage to his reputation and personal liberty. If, however, A genuinely and reasonably believed, on the information available to him, that B had committed the theft, even though B is later acquitted, A is not liable, since reasonable and probable cause existed.

Q3. Discuss private nuisance and the remedies available for it, with reference to *Sturges v Bridgman* and *Radhey Shyam v Gur Prasad Sharma*. Illustrate.

Principle: Private nuisance is an unlawful interference with a person's use or enjoyment of land, or of some right over or in connection with it, causing damage, discomfort or inconvenience. The interference must be substantial and the use of the defendant's property unreasonable, considering factors such as locality, duration, intensity and the utility of the defendant's conduct. The remedies for private nuisance are damages, injunction and, in some cases, abatement.

Sturges v Bridgman	
Citation	(1879) 11 Ch D 852 (Court of Appeal)
Facts	A confectioner had, for many years, used heavy pestles and mortars that caused noise and vibration. A physician later built a consulting room next to the confectioner's premises, and found that the noise and vibration interfered with his practice.
Issue	Is it a defence to an action for nuisance that the defendant's noisy activity existed before the plaintiff came to the locality ("coming to the nuisance")?
Held	The court held that it is no defence that the plaintiff came to the nuisance; what matters is whether the interference is unreasonable in the circumstances existing when the action is brought. The confectioner was restrained by injunction.
Significance	Establishes that "coming to the nuisance" is not, by itself, a defence in private nuisance.

Radhey Shyam v Gur Prasad Sharma	
Citation	AIR 1978 All 86
Facts	The defendant installed a flour mill in a residential area, and the noise and vibration caused by its operation disturbed the plaintiff, his neighbour, in the use and enjoyment of his house.
Issue	Can an occupier be restrained from operating machinery on his own premises when it substantially interferes with a neighbour's comfort and enjoyment of his property?
Held	The Allahabad High Court granted a permanent injunction restraining the operation of the flour mill in that manner, holding that a person, however lawfully using his own property, cannot cause a substantial and unreasonable interference with his neighbour's enjoyment of his property.
Significance	An Indian illustration of private nuisance caused by noise and vibration in a residential locality, and of injunction as an appropriate remedy.

Illustration

A runs a small dyeing unit that has emitted fumes for years in an industrial area. B builds a house nearby and complains of the fumes. Since the area is industrial and A's activity is not unreasonable for that locality, B may not succeed merely because he came to the area later, applying *Sturges v Bridgman's* reasoning that "coming to the nuisance" alone is not decisive, though the reasonableness of use in that locality will still be examined. If, however, A installs heavy machinery causing continuous loud noise and vibration in a quiet residential locality, disturbing B's peaceful enjoyment of his home, B can obtain an injunction, as in *Radhey Shyam v Gur Prasad Sharma*.

Q4. Explain the no-fault liability and structured formula compensation for motor accident victims under the Motor Vehicles Act, 1988, with reference to *Minu B. Mehta v Balkrishna Ramchandra Nayan* and *Gujarat State Road Transport Corporation v Ramanbhai Prabhatbhai*. Illustrate.

Principle: Since proving negligence in a motor accident case is often difficult for the victim, the Motor Vehicles Act, 1988 provides for no-fault liability (Sections 140 to 144, corresponding to Sections 164 and related provisions under the 2019 amendment) under which a claimant can recover a fixed amount of compensation without proving negligence on the part of the driver or owner. In addition, the Second Schedule to the Act provides a structured formula for computing "just compensation" based on the age and income of the victim, to reduce litigation and delay. Courts have interpreted the Act's compensation provisions liberally, as a welfare and beneficial legislation.

Minu B. Mehta v Balkrishna Ramchandra Nayan	
Citation	(1977) 2 SCC 441
Facts	See Unit I. This case highlighted that, at common law, compensation for a motor accident could not be claimed without proving negligence.

Issue	Should victims of motor accidents be required to prove negligence in every case, given the hazards of modern road traffic?
Held	The Supreme Court, while dismissing the claim for want of proof of negligence, drew attention to the hardship this caused and to the desirability of a no-fault compensation scheme.
Significance	Directly led to the insertion of no-fault liability provisions in the Motor Vehicles Act by amendment.

Gujarat State Road Transport Corporation v Ramanbhai Prabhatbhai	
Citation	(1987) 3 SCC 234
Facts	A claim for compensation was made by the heirs of a person killed in a motor accident involving a State Transport Corporation bus, and questions arose as to the scope and interpretation of the compensation provisions of the Motor Vehicles Act.
Issue	Should the compensation provisions of the Motor Vehicles Act be construed strictly like an ordinary tort statute, or liberally as a welfare measure?
Held	The Supreme Court held that the Motor Vehicles Act is a piece of social welfare legislation intended to give relief to victims of motor accidents, and its provisions should be interpreted liberally in favour of the claimants, so as to advance the object of the Act.
Significance	An important authority for the liberal, purposive interpretation of motor accident compensation law in India.

Illustration

A two-wheeler rider is knocked down by a truck, and it is unclear who was at fault. Under Sections 140-144 of the Motor Vehicles Act (no-fault liability), the rider's family can claim a fixed compensation from the insurer without proving negligence. If they wish to claim a higher, "just" compensation based on the victim's age and income, they can approach the Motor Accident Claims Tribunal and rely on the structured formula in the Second Schedule, and the Tribunal, following the welfare approach in Ramanbhai Prabhatbhai's case, will interpret the provisions liberally in the claimants' favour.

Part C — 15 Marks Questions

1. **Discuss the torts affecting the person: assault, battery and false imprisonment, with their essentials, defences and remedies.**

Key points: Definitions and essentials; apprehension vs actual contact; defences — consent, self-defence, lawful authority; false imprisonment — total restraint, *Bird v Jones*; *Bhim Singh v State of J&K*; remedies — damages, habeas corpus.

2. **Explain malicious prosecution as a tort. Distinguish it from false imprisonment.**

Key points: Essentials — prosecution by the defendant, without reasonable and probable cause, with malice, termination in favour of the plaintiff, damage; *Abrath v North Eastern Railway Co.*; *West Bengal State Electricity Board v Dilip Kumar Ray*; distinction from false imprisonment (restraint of liberty vs abuse of legal process).

3. **Discuss private and public nuisance — their essentials, distinction and remedies.**

Key points: Unlawful interference with use and enjoyment of land (private nuisance) vs interference with a right common to the public (public nuisance); essentials — substantial interference, unreasonable use; *Sturges v Bridgman*; *Radhey Shyam v Gur Prasad Sharma*; remedies — damages, injunction, abatement; Section 133 Cr.P.C./BNSS for public nuisance; when a private individual can sue for public nuisance (special damage).

4. **Discuss the liability arising out of motor vehicle accidents under the Motor Vehicles Act, 1988. Explain the no-fault liability and structured formula compensation.**

Key points: Sections 140-144 (no-fault liability; now Sections 164 and related provisions after 2019 amendment); *Minu B. Mehta v Balkrishna Ramchandra Nayan*; *Gujarat State Road Transport Corporation v Ramanbhai Prabhatbhai*; Second Schedule structured formula; Motor Accident Claims Tribunals; hit-and-run solatium scheme; contributory and composite negligence in motor accident claims; interim compensation.

5. **Explain nervous shock as an actionable tort and discuss the law relating to torts against movable property.**

Key points: Requirements — proximity, foreseeability, recognised psychiatric illness, not mere grief; *Dulieu v White & Sons*; *Bourhill v Young*; trespass to goods, conversion (wrongful interference with possession), detinue (wrongful detention after demand); remedies — damages, return of goods.

Unit-IV: Defamation, Negligence, Torts Against Business and Family Relations, Remedies

Part A — 5 Marks Questions

1. Define defamation. Distinguish libel from slander.
2. State the essentials of defamation and its defences.
3. Define negligence. State its essential elements.
4. Explain the doctrine of res ipsa loquitur.
5. Explain negligent misstatement as a tort.
6. Explain the essentials of the tort of passing off.
7. Explain injurious falsehood (slander of title or of goods).
8. Explain conspiracy as a tort.
9. Write a short note on torts affecting family relations.
10. Explain the kinds of damages awarded in tort (nominal, substantial, exemplary, contemptuous).
11. Explain the rule of remoteness of damage in tort.
12. Explain the maxim actio personalis moritur cum persona and its exceptions.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain defamation and its defences with reference to *E. Hulton & Co. v Jones* and *Ram Jethmalani v Subramaniam Swamy*. Illustrate.

Principle: Defamation is the publication of a statement that lowers a person's reputation in the eyes of right-thinking members of society, or that exposes him to hatred, contempt or ridicule. It is libel if in a permanent form (such as writing) and slander if in a transient form (such as spoken words). The essentials are a defamatory statement, reference to the plaintiff, and publication to a third person. Defences include justification (truth), fair comment on a matter of public interest, and absolute or qualified privilege.

E. Hulton & Co. v Jones	
Citation	[1910] AC 20 (House of Lords)
Facts	A newspaper published a humorous fictional article about a character named "Artemus Jones", not intending to refer to any real person. A real barrister of the same name, Thomas Jones, was believed by his acquaintances to be the person described, and sued for defamation.
Issue	Is it necessary for the defendant to have intended to refer to the plaintiff, if reasonable readers understood the statement to refer to him?
Held	The House of Lords held that intention to defame the plaintiff is not necessary; what matters is whether reasonable people who knew the plaintiff would understand the statement to refer to him. Since they did, the newspaper was liable despite having no such intention.
Significance	Establishes that defamation can occur even unintentionally, so long as the statement is reasonably understood to refer to the plaintiff.

Ram Jethmalani v Subramaniam Swamy	
Citation	2006 (87) DRJ 603 (Delhi High Court)
Facts	Dr. Subramaniam Swamy made allegations against Ram Jethmalani suggesting that he had received money from a banned organisation to defend the accused in a sensitive murder case, thereby impugning his motives and integrity.
Issue	Can a defendant escape liability for a defamatory statement by pleading justification (truth) and fair comment, without adequate proof?
Held	The Delhi High Court held the defendant liable in damages for defamation, finding that the defamatory imputations were not proved to be true and were not fair comment on a matter of public interest, since they went beyond legitimate criticism to make unsubstantiated allegations about the plaintiff's integrity.
Significance	An Indian illustration of defamation through allegations against a public figure, and of the limits of the defences of justification and fair comment.

Illustration

A newspaper publishes a defamatory story about a fictional character with the same name as a real, identifiable person, and readers who know that person believe it refers to him. As in *E. Hulton & Co. v Jones*, the publisher can be liable even without intending to defame him. If a public commentator makes an allegation about a lawyer's professional integrity that cannot be proved true and goes beyond fair criticism of his public conduct, the lawyer can succeed in a defamation suit, as in *Ram Jethmalani v Subramaniam Swamy*.

Q2. Explain negligence as a tort, the standard of care, and the doctrine of *res ipsa loquitur*, with reference to *Blyth v Birmingham Waterworks Co.* and *Municipal Corporation of Delhi v Subhagwanti*. Illustrate.

Principle: Negligence is the breach of a legal duty to take care, resulting in damage to the plaintiff. The essentials are: a duty of care owed by the defendant to the plaintiff, breach of that duty by failing to observe the standard of care of a reasonable and prudent person, and damage caused by the breach. Where an accident is of such a nature that it would not ordinarily happen without negligence, and the thing causing it was under the sole management and control of the defendant, the maxim *res ipsa loquitur* ("the thing speaks for itself") shifts the burden to the defendant to explain how the accident occurred without negligence on his part.

Blyth v Birmingham Waterworks Co.	
Citation	(1856) 11 Exch 781
Facts	The defendant company had laid water pipes with fire hydrants, constructed with reasonable care according to the state of scientific knowledge at the time. An extraordinarily severe frost, unprecedented in living memory, caused a hydrant to crack, and water escaped, damaging the plaintiff's house.
Issue	What is the standard by which negligence is to be judged?

Held	The court held that negligence is the omission to do something that a reasonable man, guided by the considerations that ordinarily regulate human affairs, would do, or doing something that a prudent and reasonable person would not do. Since the frost was of a severity that could not reasonably have been anticipated, the defendant was not negligent.
Significance	The classic statement of the objective "reasonable man" standard of care in negligence.

Municipal Corporation of Delhi v Subhagwanti	
Citation	AIR 1966 SC 1750
Facts	The Clock Tower in Chandni Chowk, Delhi, which was under the control and management of the Municipal Corporation, suddenly collapsed, killing several persons walking nearby.
Issue	Where the exact cause of an accident cannot be shown by the plaintiff, but the thing causing the accident was under the sole management and control of the defendant, and such accidents do not normally happen without negligence, can the maxim res ipsa loquitur be applied?
Held	The Supreme Court held that the collapse of a structure that was under the exclusive control of the Corporation and had been standing for decades, without any explanation of an external cause, raised a presumption of negligence in maintenance under res ipsa loquitur, and the burden shifted to the Corporation to show that it was not negligent, which it failed to do.
Significance	A leading Indian application of res ipsa loquitur, particularly relevant to the collapse of structures under civic bodies' control.

Illustration

A water pipe bursts because of an entirely unprecedented and unforeseeable natural event, causing damage; the water company is not negligent, as in *Blyth v Birmingham Waterworks*. But if a signboard maintained by a municipal corporation for many years suddenly falls on a pedestrian without any external explanation, res ipsa loquitur applies, and the corporation must explain the fall or be held liable, as in the case of the Delhi Clock Tower collapse.

Q3. Discuss the torts against business relations: passing off and injurious falsehood, with reference to *Cadila Health Care Ltd. v Cadila Pharmaceuticals Ltd.* and *Ratcliffe v Evans*. Illustrate.

Principle: Passing off is the tort of representing one's own goods or business as those of another, thereby causing damage to the other's goodwill; in trademark disputes, courts examine the likelihood of confusion between deceptively similar marks, especially where confusion could cause public harm (as with pharmaceutical products). Injurious falsehood (also called slander of title or slander of goods) consists of a false statement, made maliciously, disparaging the plaintiff's title, goods or business, causing him special damage.

Cadila Health Care Ltd. v Cadila Pharmaceuticals Ltd.	
Citation	(2001) 5 SCC 73
Facts	Two pharmaceutical companies, both using the name "Cadila" as part of their corporate names, marketed drugs under deceptively similar brand names ("Falcigo" and "Falcitab") for treating the same ailment, raising a risk of one being mistaken for the other, with potentially serious consequences for patients.
Issue	What is the appropriate test for deciding passing off between similar marks used for medicinal products, given the risk to public health if the products are confused?
Held	The Supreme Court held that a stricter standard should be applied to cases involving medicinal products than to other consumer goods, because confusion between drugs could have serious, even fatal, consequences; it laid down a list of factors to be weighed in deciding the likelihood of deception or confusion, and granted relief against passing off.
Significance	The leading Indian authority on passing off in the pharmaceutical sector, emphasising public health considerations.

Ratcliffe v Evans	
Citation	[1892] 2 QB 524 (Court of Appeal)
Facts	The defendant published a false statement that the plaintiff had ceased to carry on business and that his firm no longer existed, causing a general decline in his business, although the plaintiff could not point to any specific customer lost because of the statement.
Issue	Can a plaintiff recover damages for injurious falsehood by proving general loss of business, without identifying each specific customer who was misled?
Held	The Court of Appeal held that general loss of business, naturally and reasonably resulting from a false and malicious statement, is sufficient proof of special damage; the plaintiff need not name every individual customer lost.
Significance	An important authority relaxing the strictness of proving special damage in actions for injurious falsehood (slander of goods or business).

Illustration

A pharmaceutical company markets a medicine under a name deceptively similar to a competitor's established brand for a similar ailment, risking that pharmacists or patients may confuse the two; the competitor can obtain an injunction on the principles in *Cadila Health Care*. If a rival trader falsely and maliciously announces that a shopkeeper has closed down or gone bankrupt, causing an overall drop in his business, the shopkeeper can sue for injurious falsehood and prove his loss through the general decline in trade, without naming every lost customer, as in *Ratcliffe v Evans*.

Q4. Explain the rule of remoteness of damage in tort, with reference to *Re Polemis and Overseas Tankship (U.K.) Ltd. v Morts Dock & Engineering Co. (The Wagon Mound No. 1)*. Illustrate.

Principle: A defendant is not liable for all the consequences that follow from his wrongful act, however remote; the law draws a line based on the test of remoteness of damage, beyond which damage is regarded as too remote to be recoverable. Two competing tests have been applied historically: the "direct consequence" test, under which a defendant is liable for all damage that directly flows from his negligent act, whether foreseeable or not; and the later "reasonable foreseeability" test, under which a defendant is liable only for damage of a kind that a reasonable person could have foreseen as a likely result of the act.

Re Polemis and Furness, Withy & Co. Ltd.	
Citation	[1921] 3 KB 560 (Court of Appeal)
Facts	Stevedores engaged by the charterers of a ship negligently dropped a plank into the ship's hold, which struck something and caused a spark that ignited petrol vapour present in the hold, resulting in the total destruction of the ship by fire.
Issue	Is the defendant liable for the entire loss caused directly by his negligent act, even though the extent of the damage (the ship catching fire and being destroyed) could not reasonably have been foreseen?
Held	The Court of Appeal held the defendants liable for the whole loss, holding that once an act is negligent, the defendant is liable for all the direct consequences of it, whether or not they were foreseeable, so long as they are not too remote in the sense of being a "direct" result of the negligent act.
Significance	Established the "direct consequence" test of remoteness, which was later overruled by <i>The Wagon Mound No. 1</i> .

Overseas Tankship (U.K.) Ltd. v Morts Dock & Engineering Co. (The Wagon Mound No. 1)	
Citation	[1961] AC 388 (Privy Council)
Facts	Furnace oil was negligently discharged from the defendant's ship into Sydney Harbour, and it spread to the plaintiff's wharf, where welding work was in progress. Molten metal from the welding ignited cotton waste floating on the oil, and the resulting fire caused extensive damage to the wharf.
Issue	Should a defendant be liable for damage that, though a direct result of his negligent act, was not reasonably foreseeable at the time?
Held	The Privy Council rejected the direct-consequence test of <i>Re Polemis</i> , and held that a defendant is liable only for damage of a kind that was reasonably foreseeable as a possible consequence of the negligent act. Since the fire risk from the floating oil was not reasonably foreseeable on the facts, the defendant was not liable for the fire damage, though it might have been liable for foreseeable pollution damage.

Significance	Established "reasonable foreseeability" as the modern test of remoteness of damage in the tort of negligence.
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Illustration

A negligently drops a heavy object in a cargo hold, causing an unexpected spark that ignites petrol fumes and burns down the entire ship; under *Re Polemis*, A would be liable for the whole loss as a direct consequence, however unforeseeable the fire. Under the later and now generally accepted approach in *The Wagon Mound*, A would be liable only if a reasonable person could have foreseen that dropping the object might cause a fire, and not for damage of an entirely unforeseeable kind, even though it directly followed from the negligent act.

Part C — 15 Marks Questions

1. Discuss defamation as a tort — its meaning, kinds, essentials and defences.

Key points: Libel and slander; essentials — defamatory statement, reference to the plaintiff, publication; defences — justification (truth), fair comment, absolute and qualified privilege; *E. Hulton & Co. v Jones*; *Ram Jethmalani v Subramaniam Swamy*; statutory offence of defamation under the *Bharatiya Nyaya Sanhita, 2023* (Section 356, corresponding to old Section 499 IPC); constitutional dimension — Article 19(1)(a) and 19(2).

2. Explain negligence as an independent tort. Discuss the standard of care, *res ipsa loquitur* and contributory negligence.

Key points: Duty of care, breach, resulting damage; neighbour principle (*Donoghue v Stevenson*); reasonable man standard (*Blyth v Birmingham Waterworks Co.*); *res ipsa loquitur* (*Municipal Corporation of Delhi v Subhagwanti* — clock tower collapse); contributory negligence and its effect on damages; composite negligence.

3. Discuss the torts against business relations: injurious falsehood, negligent misstatement, passing off and conspiracy.

Key points: Negligent misstatement — *Hedley Byrne & Co. Ltd. v Heller & Partners Ltd.*; *Caparo Industries plc v Dickman*; passing off — *Cadila Health Care Ltd. v Cadila Pharmaceuticals Ltd.*; injurious falsehood — *Ratcliffe v Evans*; conspiracy — *Mogul Steamship Co. v McGregor, Gow & Co.*; *Crofter Hand Woven Harris Tweed Co. v Veitch*.

4. Discuss the judicial and extra-judicial remedies available in tort. Explain the kinds and assessment of damages and the rule of remoteness of damage.

Key points: Judicial remedies — damages, injunction, specific restitution; extra-judicial remedies — self-help, re-entry on land, abatement of nuisance, recaption of goods; kinds of damages; assessment — pecuniary and non-pecuniary loss; remoteness — *Re Polemis* and *Furness, Withy & Co.*; *Overseas Tankship (U.K.) Ltd. v Morts Dock & Engineering Co. (The Wagon Mound No. 1)*.

5. Explain the effect of death on the right of action in tort. Discuss the maxim *actio personalis moritur cum persona* and its statutory exceptions in India.

Key points: Common law rule that a personal action dies with the person; exceptions — *Legal Representatives' Suits Act, 1855*; *Indian Succession Act*; *Motor Vehicles Act, 1988* (claims by legal representatives); survival of action for the benefit of the estate; torts affecting family relations historically (loss of consortium, enticement) and their diminished modern relevance.

Unit-V: Consumer Protection Law

Part A — 5 Marks Questions

1. Define 'consumer' under Section 2(7) of the Consumer Protection Act, 2019.
2. State the salient features of the Consumer Protection Act, 2019.
3. Distinguish 'defect in goods' from 'deficiency in service'.
4. Explain 'unfair trade practice' under the Consumer Protection Act, 2019.
5. Explain 'restrictive trade practice'.
6. State the rights of consumers recognised under the Act.
7. Explain the composition and functions of the Central Consumer Protection Authority (CCPA).
8. Explain product liability under Chapter VI of the Consumer Protection Act, 2019.
9. Explain the pecuniary jurisdiction of the District, State and National Consumer Disputes Redressal Commissions.
10. Explain the concept of continuing cause of action in a consumer dispute.
11. Explain the penalty for misleading advertisement under the Consumer Protection Act, 2019.
12. Write a short note on mediation under the Consumer Protection Act, 2019.
13. Explain e-filing and the e-commerce rules under consumer protection law.
14. Explain the composition of the Consumer Protection Councils at the Central, State and District levels.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Discuss the meaning of 'consumer' and the applicability of consumer protection law to services, with reference to Lucknow Development Authority v M.K. Gupta and Indian Medical Association v V.P. Shantha. Illustrate.

Principle: Section 2(7) of the Consumer Protection Act, 2019 defines a "consumer" as a person who buys goods or hires or avails of services for consideration, but does not include a person who obtains goods or services for resale or for a commercial purpose (except where the goods or services are used exclusively for earning livelihood by means of self-employment). The definition has been given a wide and purposive interpretation by courts to cover a broad range of service providers, including statutory and professional bodies.

Lucknow Development Authority v M.K. Gupta	
Citation	(1994) 1 SCC 243
Facts	The Lucknow Development Authority failed to deliver a flat to the allottee within the promised time and later delivered a smaller flat than agreed, causing loss and hardship to the allottee, who complained under the consumer protection law then in force.
Issue	Is a statutory housing development authority a "service" provider, and its allottees "consumers", within the meaning of the consumer protection law, and is there deficiency in such a case?

Held	The Supreme Court held that a housing authority allotting flats for consideration renders a "service" within the meaning of the Act, and delay or breach of promise in delivering possession amounts to deficiency in service; the allottee is a consumer entitled to compensation, including for mental agony and harassment.
Significance	Widened the interpretation of "service" to cover statutory housing and development authorities, a foundation for consumer protection in housing.

Indian Medical Association v V.P. Shantha	
Citation	(1995) 6 SCC 651
Facts	A patient who alleged negligence in medical treatment filed a consumer complaint, and the question arose whether medical services fall within the definition of "service" under the consumer protection law, and whether doctors and hospitals could be held liable as service providers.
Issue	Are medical services rendered by doctors and hospitals for consideration covered under consumer protection law, and does the exception for personal service apply?
Held	The Supreme Court held that services rendered by medical practitioners (except where rendered free of charge to all patients, or under a contract of personal service) fall within the definition of "service", and patients paying a fee or covered by insurance or through an employer are "consumers" who can maintain a complaint for deficiency in medical service.
Significance	The leading authority bringing medical negligence within the fold of consumer protection law, subject to the free-treatment exception.

Illustration

A pays a development authority for an apartment, but the authority delays possession by several years and finally hands over an apartment smaller than promised. A is a "consumer" and can claim compensation for deficiency in service, following Lucknow Development Authority v M.K. Gupta. Similarly, if B pays a private hospital for a surgery that is performed negligently, B (or, in the case of a minor, B's parents) is a "consumer" and can file a complaint for medical negligence as deficiency in service, following Indian Medical Association v V.P. Shantha; but if the treatment is given completely free of charge at a charitable hospital to all patients regardless of means, the exception for free medical service may apply.

Q2. Discuss deficiency in service in the context of medical negligence, with reference to Spring Meadows Hospital v Harjol Ahluwalia and Kusum Sharma v Batra Hospital. Illustrate.

Principle: "Deficiency" under Section 2(11) of the Consumer Protection Act, 2019 means any fault, imperfection, shortcoming or inadequacy in the quality, nature or manner of performance of a service. In medical negligence cases, courts apply a professional standard of care (often referred to as the Bolam-type test, as adapted in India) and require the complainant to show that the doctor fell below

the standard of a reasonably competent practitioner in that field, and not merely that a different course of treatment might have produced a better result.

Spring Meadows Hospital v Harjol Ahluwalia	
Citation	(1998) 4 SCC 39
Facts	A child was administered a wrong and excessive dose of an injection due to the negligence of hospital staff, causing him to go into a coma with permanent brain damage. His parents, who had paid for the treatment, also filed a complaint on their own behalf.
Issue	Can both the patient (a minor, through his parents) and the parents who paid for the treatment be treated as "consumers" and claim compensation for the hospital's deficiency in service?
Held	The Supreme Court held that the hospital was liable for gross negligence amounting to deficiency in service, and that both the minor patient (as the beneficiary of the service) and the parents (who hired the service and paid consideration) could be treated as consumers and were entitled to compensation, including for the mental agony suffered by the parents.
Significance	Clarified that more than one person connected with a service (the patient and the person who pays for it) can be "consumers" for the purpose of a complaint.

Kusum Sharma v Batra Hospital and Medical Research Centre	
Citation	(2010) 3 SCC 480
Facts	The complainants alleged that a patient's death was caused by negligent diagnosis and treatment at the hospital, and the case examined the appropriate standard for judging whether a doctor had been negligent.
Issue	What is the standard for determining medical negligence, and how should courts distinguish an error of judgment from actionable negligence?
Held	The Supreme Court laid down detailed guidelines, holding that a doctor is not liable for negligence merely because a treatment fails or another doctor would have adopted a different method; negligence is established only where the doctor's conduct falls below the standard of a reasonable competent practitioner in that branch of medicine, judged by the medical knowledge and practice of the time, and courts should be cautious against readily inferring negligence to avoid discouraging doctors from taking necessary risks in patient care.
Significance	A leading authority laying down the modern, balanced standard for medical negligence in India.

Illustration

A hospital nurse administers ten times the prescribed dose of a drug to an infant due to carelessness, causing permanent injury; both the infant patient and the parents who paid the hospital bill can be treated as consumers and can jointly or severally claim compensation, following Spring Meadows

Hospital. If, on the other hand, a surgeon chooses one of two medically accepted methods of treatment and the outcome is unfavourable despite reasonable care and skill, the surgeon is not liable merely because a different method might have worked better, applying the standard in *Kusum Sharma v Batra Hospital*.

Q3. Explain product liability under the Consumer Protection Act, 2019, with reference to *Donoghue v Stevenson* and *Grant v Australian Knitting Mills Ltd*. Illustrate.

Principle: Chapter VI of the Consumer Protection Act, 2019 introduces, for the first time in Indian statute law, a specific "product liability action" by which a consumer can claim compensation from a product manufacturer, product seller or product service provider for harm caused by a defective product or deficient service related to it. Liability may arise from a manufacturing defect, a design defect, a deviation from manufacturing specifications, inadequate instructions or warnings, or a failure to conform to an express warranty. This Indian statutory scheme builds on the common law foundation laid in cases recognising a manufacturer's duty of care to the ultimate consumer, independent of any contract of sale.

Donoghue v Stevenson	
Citation	[1932] AC 562 (House of Lords)
Facts	See Unit I. A consumer, who had no contract with the manufacturer, was made ill by a decomposed snail found in an opaque bottle of ginger beer.
Issue	Does a manufacturer owe a duty of care to the ultimate consumer of a defective product, even without privity of contract?
Held	The House of Lords answered in the affirmative, holding the manufacturer liable in negligence to the injured consumer, on the neighbour principle.
Significance	The common law foundation for product liability, later given detailed statutory shape in India by Chapter VI of the Consumer Protection Act, 2019.

Grant v Australian Knitting Mills Ltd.	
Citation	[1936] AC 85 (Privy Council)
Facts	The plaintiff bought and wore woollen underwear manufactured by the defendant, which, owing to a manufacturing defect (an excess of a chemical used in the manufacturing process, that had not been properly washed out), caused him a severe skin disease.
Issue	Is a manufacturer liable to the ultimate consumer for injury caused by a latent manufacturing defect in a product, even where the defect could not be discovered by ordinary inspection?
Held	The Privy Council, applying and extending the principle in <i>Donoghue v Stevenson</i> , held the manufacturer liable, since the garments reached the consumer in the same defective condition in which they left the factory, without any reasonable possibility of intermediate examination.

Significance	An important extension of manufacturer's liability to manufacturing defects in everyday consumer goods such as clothing.
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Illustration

A buys a packaged food product that, due to a manufacturing defect, contains a harmful contaminant, and falls seriously ill after consuming it. Under Chapter VI of the Consumer Protection Act, 2019, A can bring a product liability action against the manufacturer (and, in appropriate cases, the seller) for harm caused by the defective product, building on the common law principle recognised in *Donoghue v Stevenson* and *Grant v Australian Knitting Mills*, that a consumer need not have a direct contract with the manufacturer to claim compensation for injury caused by a defective product.

Q4. Explain the jurisdiction of the Consumer Disputes Redressal Commissions and the changed position on territorial jurisdiction under the Consumer Protection Act, 2019, with reference to *Sonic Surgical v National Insurance Co. Ltd.* Illustrate.

Principle: The Consumer Protection Act, 2019 establishes a three-tier redressal machinery — District, State and National Consumer Disputes Redressal Commissions — with pecuniary jurisdiction based on the value of goods or services paid as consideration, as amended from time to time. Territorial jurisdiction is dealt with in Section 34, which allows a complaint to be filed where the opposite party resides or carries on business, or where the cause of action wholly or partly arises, and, significantly, the 2019 Act now expressly permits filing at the place where the complainant resides or personally works for gain, which is especially important for online and e-commerce transactions.

Sonic Surgical v National Insurance Co. Ltd.	
Citation	(2010) 1 SCC 135
Facts	A fire broke out at the complainant's business premises in Ambala, Haryana, which were insured through a branch of the insurance company at Ambala, but the insurance company's head office was located at Chandigarh. The complainant filed the case before the Chandigarh Consumer Forum.
Issue	Under the law as it then stood, could a complaint be filed at the place where the opposite party's head office was located, though the branch office concerned with the specific transaction and the cause of action were located elsewhere?
Held	The Supreme Court held that the expression "branch office" in the provision on territorial jurisdiction (under the earlier 1986 Act) meant the branch where the cause of action arose, and not just any branch or the head office; the complaint had to be filed where the branch office concerned with the transaction, or the cause of action, was located, and not merely where the head office of the opposite party happened to be.
Significance	An important pre-2019 authority on territorial jurisdiction; its restrictive interpretation of "branch office" was a factor that contributed to Parliament's

decision, in the 2019 Act, to allow filing at the place where the complainant resides or works for gain.
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Illustration

A consumer residing in Hyderabad buys a defective television online from a company whose registered office is in Delhi, with no branch office in Hyderabad. Under the position that prevailed when *Sonic Surgical* was decided, the consumer might have had to approach a forum in Delhi. Under Section 34 of the Consumer Protection Act, 2019, the consumer can now file the complaint before the District Commission having jurisdiction over the place where she resides, which considerably eases access to justice, especially in e-commerce disputes.

Part C — 15 Marks Questions

1. **Discuss the definition of 'consumer' under the Consumer Protection Act, 2019 and the rights of consumers recognised under the Act.**

Key points: Section 2(7) — goods/services for consideration, exclusion of commercial purpose (with the exclusive livelihood/self-employment exception); *Lucknow Development Authority v M.K. Gupta*; *Indian Medical Association v V.P. Shantha*; six consumer rights under Section 2(9) — safety, information, choice, being heard, redressal, consumer education.

2. **Discuss the salient features of the Consumer Protection Act, 2019 as compared with the 1986 Act, with reference to the CCPA and product liability.**

Key points: Widened definition of consumer (e-commerce, telemarketing, multi-level marketing); Central Consumer Protection Authority — establishment, composition, investigation and enforcement powers, power to recall goods and order refund; product liability action under Chapter VI against a manufacturer, service provider or seller; mediation as an alternative dispute resolution mechanism.

3. **Explain the redressal machinery under the Consumer Protection Act, 2019 — the Consumer Protection Councils and the three-tier Commissions, their jurisdiction and powers.**

Key points: Central, State and District Consumer Protection Councils — advisory bodies; District, State and National Consumer Disputes Redressal Commissions — pecuniary and territorial jurisdiction (Section 34, place of residence, branch office, and online transactions), powers of a civil court, appeal and revision, execution of orders.

4. **Discuss unfair trade practices, restrictive trade practices and misleading advertisements under the Consumer Protection Act, 2019, and the penalties prescribed for them.**

Key points: Section 2(47) unfair trade practice — false representation, bargain price, offering gifts with the intent not to provide them, hoarding; restrictive trade practice — Section 2(41); misleading advertisement — Section 2(28); penalties under Sections 21 and 89 against manufacturers and endorsers; role of the CCPA in curbing misleading advertisements.

5. Explain the procedure for filing a consumer complaint, e-filing, and the role of mediation and alternative dispute resolution under the Consumer Protection Act, 2019.

Key points: Who may file a complaint (Section 35); limitation period; e-Daakhil portal and Consumer Protection (E-Commerce) Rules, 2020; reference to mediation with the consent of parties (Chapter V), empanelment of mediators, mediation cells attached to Commissions, settlement and its effect; civil and criminal liability under the Act; advantages of ADR in consumer disputes.